

UK - Paternity Procedure

Purpose and Scope

This procedure outlines the rights of employees relating to paternity leave and sets out the arrangements for taking leave.

This procedure applies to all employees who are employed by Wood in the United Kingdom. Section 2.6.2 applies to eligible employees engaged on a Professional Technical contract of employment; no other contract styles are eligible.

This procedure does not form part of an employee's terms and conditions of employment, and the Company reserves the right to amend it at any time.

This procedure will be superseded by the content of any recognised collective bargaining/working rule agreements, site agreements or individual contracts of employment, in the event of there being any difference(s) in arrangements.

This procedure does not apply to contractors, consultants or any self-employed individuals providing services to Wood.

Applicability - United Kingdom

1.0 Key Roles and Responsibilities

The following roles and responsibilities apply within the context of this procedure.

1.1 Employees

Employees are responsible for ensuring they act in compliance with this procedure.

1.2 Managers

Managers are responsible for ensuring the application and adherence to this procedure.

1.3 Human Resources (HR)

HR will provide support and guidance for the application of this procedure.

2.0 Paternity Leave Procedure

2.1 Eligibility for Paternity Leave

Paternity leave is available to an employee of either gender, for the purpose of caring for a child, or supporting the child's other parent, in the following cases:

- on the birth of a child where the employee is the spouse, civil partner, or partner of the child's mother and has or expects to have responsibility for the child's upbringing; or
- on the birth of a child where the employee is the biological father and has or expects to have responsibility (with the child's mother) for the child's upbringing; or
- on the birth of a child to a surrogate mother where either the employee, or their partner is, one of the child's biological parents and expects to obtain a parental order giving them and their partner responsibility for the child; or
- where an adoption agency places a child with the employee and/or their partner for adoption and they have or expect to have responsibility (with their partner) for the child's upbringing; or
- where a local authority places a child with the employee and/or their partner under a fostering for adoption arrangement and they have or expect to have responsibility (with their partner) for the child's upbringing; and
- where an employee has not already taken any shared parental leave in respect of the child.

To qualify for paternity leave the employee must:

- have worked continuously for the Company for 26 weeks by the end of the Qualifying Week (QW) or by the end of the week in which an approved match with the child is made for adoption purposes; and
- be taking the leave to care for a child or to support the child's other parent in caring for the child.

Adoptive parents are to also refer to the United Kingdom - Adoption Procedure to consider alternative entitlements. An employee cannot take paternity and adoption leave at the same time in respect of the same child.

2.2 Entitlement to Paternity Leave

Employees who qualify for paternity leave will be entitled to take either one week's paternity leave or two weeks' paternity leave, which can either be taken as one consecutive period or two non-consecutive periods of leave. Paternity leave cannot be taken as odd days.

Paternity leave can start:

- from the date of the child's birth, or in the case of adoption, the date of the child's placement with the employee and/or their partner; or
- the date the child entered Great Britain (whether this is earlier or later than expected); or

--	--	--

- from a chosen number of days or weeks after the date of the child's birth, the child's placement for adoption or entrance to Great Britain (whether this is earlier or later than expected).

Paternity leave can start on any day of the week on or after the date of the child's birth, adoption placement or entrance to Great Britain, but it must be completed:

- within 52 weeks of the actual date of birth of the child, the date on which the placement occurred or the date the child entered Great Britain; or
- if the child is born early, within the period from the actual date of birth up to 52 weeks after the Expected Week of Childbirth (EWC).

Employees who wish to take shared parental leave must take paternity leave first. Employees cannot take paternity leave if they have already taken a period of shared parental leave in relation to the same child.

2.3 Notice Requirements

An employee must now notify the Company in writing of both their entitlement and intention to take Paternity leave.

The employee must advise the company of their entitlement to take paternity leave:

- by the end of the QW; or
- in the case of adoption within the UK within seven days after the employee and/or their partner has been notified of being matched for adoption with a child; or
- in the case of adoption from overseas within 28 days of the employee and/or their partner receiving the official notification, or as soon as reasonably practicable.

The employee must then notify the Company in writing of:

- the intended date they wish the leave period(s) to start. This must be communicated to the Company no less than 28 days in advance of leave starting; or
- the EWC, or the date on which the employee and/or their partner was notified of having been matched with a child and the Expected Placement Date (EPD), or the date on which the employee and/or their partner received the official notification and the date on which the child is expected to enter Great Britain;
- whether they wish to take one or two weeks' leave; and
- whether they wish to take concurrent or separate periods of leave.

In the case of birth, the Company may request evidence in the form of a MATB1 form. In the case of adoption, the Company may request evidence in the form of documents issued by the adoption agency showing, for example, the name and address of the adoption agency, the date the employee was matched with the child and the expected week of placement. In relation to an adoption from overseas, the Company may request a copy of the official notification document and evidence of the date on which the child entered the UK.

Requests for leave are to be made using one of the following forms as applicable:

HRM-FOR-110187 UK - Notice of entitlement to paternity leave form (adoption from overseas)

HRM-FOR-110188 UK - Notice of entitlement to paternity leave form (adoption UK)

HRM-FOR-110189 UK - Notice of entitlement to paternity leave form

HRM-FOR-110190 UK - Notice of intention to take paternity leave form (adoption from Overseas)

HRM-FOR-110191 UK - Notice of intention to take paternity leave form (adoption UK)

HRM-FOR-110192 UK - Notice of intention to take paternity leave form

These forms are available from HR and can be found on the BMS. Completed forms and supplementary documents should be submitted to the employee's manager and HR.

If an employee wishes to change the timing of their paternity leave, they must give the Company at least 28 days notice of the revised start date unless this is not reasonably practicable. In such cases, the employee is to notify the Company as soon as possible.

2.4 Time off for Antenatal Care

Employees are entitled to reasonable unpaid time off during working hours for the purposes of accompanying a pregnant woman, with whom they are having a child, to up to two antenatal appointments.

To be eligible to take this time off, the employee could be married to or be the civil partner of the pregnant woman, living with the pregnant woman in an enduring family relationship or the biological father of the expected child. In the case of adoptive parents, the secondary adopter will be entitled to take reasonable unpaid time off for up to two adoption appointments. In the case of surrogacy arrangements, reasonable unpaid time off to attend up to two antenatal appointments is provided where the employee expects to satisfy the conditions for, and intends to apply for, a Parental Order.

The antenatal appointment must be made on the advice of a registered medical practitioner, midwife, or nurse. Employees are to give their manager as much notice as possible prior to appointments and may be required to provide proof of the appointment.

2.5 Terms and Conditions during Paternity Leave

While an employee is on paternity leave, all the terms and conditions of their contract of employment, including where applicable, company car/transport allowance, with the exception of normal pay (see 2.6.1) will continue and their continuity of employment will not be affected.

During paternity leave, the employee continues to be bound by the terms and conditions of their employment.

2.6 Paternity Pay

2.6.1 Statutory Paternity Pay (SPP)

Employees eligible to take paternity leave will be entitled to SPP provided that in the eight-week period ending with the QW, or the week the employee and/or their partner was notified of being matched with a child, their average weekly earnings are not less than the lower earnings limit for National Insurance Contributions (NIC) purposes.

SPP is paid at the rate set by the government for the relevant tax year, or at 90% of the employee's average weekly earnings calculated in the eight-week period ending with the QW (or the week the employee was notified of being matched with a child for adoption) if this figure is lower than the government's set weekly rate.

Payment of SPP is made on the usual pay date and is subject to tax and NI deductions.

2.6.2 Company Paternity Pay (CPP)

Employees engaged on a Professional Technical contract of employment may be eligible for CPP.

To be eligible for CPP, an employee must:

- have 52 weeks' continuous employment with the Company by the end of the QW or in the case of adoption by the end of the week the employee and/or their partner was notified of being matched with a child for adoption; and
- remain in continuous employment with the Company until the week before commencing paternity leave.

Any CPP due during paternity leave will be paid at the employee's full basic salary during the first week of paternity leave and at the SPP rate during the second week.

CPP includes any entitlement the employee has to SPP. Employees who are not eligible for CPP will receive SPP only during paternity leave provided they meet the eligibility requirements.

--	--	--

2.6.3 Annual Leave

During paternity leave, annual leave will continue to accrue at the rate provided in the employee's terms and conditions of employment. Employees are to discuss their intentions regarding taking annual leave with their manager before going on paternity leave. Annual leave may be added to the beginning or the end of any period of paternity leave.

2.6.4 Pension

During periods of paid paternity leave the Company will continue to pay contributions into the employee's pension scheme. The amount to contribute will differ depending on the employee's pension arrangements.

In the case of non-salary sacrifice pension arrangements, the employer contribution will be based on what the employee earnings would have been had they not been on paternity leave. The employee contribution will be the relevant percentage of earnings whilst on paid leave.

In the case of salary sacrifice pension arrangements, the employee contribution will be the relevant percentage of earnings whilst on paid leave and the employers' contribution will be based on what the employee earnings would have been had they not been on paternity leave. The Company will also make up for the shortfall in the employee contribution to ensure the sum paid into the pension remains unchanged.

Employee and employer contributions will cease during unpaid periods of paternity leave.

2.6.5 Flex Benefits

Any deductions for flex benefits will continue during paternity leave provided there are funds to deduct from. Where there are no funds to deduct from, deductions will re-commence at the next possible pay run and continue until the balance due is fully paid.

2.7 Salary Review

If a salary review occurs during paternity leave, any change to the employee's salary will be applied to applicable benefits and will be effective from the salary review date. Employees on paternity leave will be notified of any changes to their salary and pay will be recalculated accordingly.

2.8 Redundancy

An employee on paternity leave retains all statutory rights in respect of redundancy. The UK - Redundancy Procedure will be followed in these circumstances and any employee on paternity leave will be treated no less favourably.

2.9 Timewriting

Employees are to record instances of paternity leave in the Company's Timewriting system, as appropriate.

2.10 Returning to Work

It will be assumed that an employee will return to work on the date specified in their notification of intention to take paternity leave.

If an employee wishes to return to work later than the return date specified in their notification of intention to take paternity leave, they may request unpaid ordinary parental leave in accordance with the UK - Ordinary Parental Leave Policy; and/or request paid annual leave in the normal way.

2.10.1 Rights on Returning to Work

If an employee takes paternity leave of two weeks or less, they are entitled to return to the same job that they were doing before their period of leave commenced, and on the same terms and conditions.

The right to return to the same job also applies where an employee returns to work after taking a period of paternity leave consecutive with a period of ordinary parental leave of four weeks or less or with any period of statutory leave that, when added to any other periods of statutory leave (excluding ordinary parental leave) taken in relation to the same child, means that the total amount of statutory leave taken in relation to that child totals 26 weeks or less.

--	--	--

If the employee returns after a period of paternity leave that does not fall into the above description, they are still entitled to return to the job in which they were employed before the absence, unless it is not reasonably practicable for the Company to allow the employee to return to the same position, in which case the Company will offer the employee another job that is both suitable and appropriate in the circumstances, on terms and conditions that are no less favourable than those that applied previously.

2.10.2 Requests for Flexible Working

Requests to change working patterns are to be made as soon as possible prior to returning to work. Further information about flexible working requests is detailed in the applicable flexible working procedure.

4.0 Abbreviations and Definitions

Term	Description
Adopter	The person with whom the child is, or is expected to be, placed for adoption, or, in a case where two people have been matched jointly, whoever has elected to be the child's adopter for the purposes of adoption leave.
Partner	The person who is married to, or the civil partner or the partner of, the employee at the date of the child's date of birth, or the date on which the child is placed for adoption (for adoptions from overseas, at the date on which the child enters Great Britain). This includes someone, of whatever sex, who lives with the mother/adopter and the child in an enduring family relationship but who is not the mother's/adopter's child, parent, grandchild, grandparent, sibling, aunt, uncle, niece or nephew.
Placed for adoption	Placed for adoption under UK adoption laws, including placement with a local authority foster parent who is also a prospective adopter ("foster to adopt").
Qualifying Week (QW)	The end of the 15th week before the Expected Week of Childbirth (EWC).
The Company	References to the "Company" in this procedure are references to the employee's current employer.
